Collective Responsibility

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thinks," it may be retorted, "is he not conceding that, for the majority, justice must be good only for its consequences, not in and of itself—the very thing Glaucon challenged Socrates to refute?" The answer is clearly, "Yes," and Plato could say so without inconsistency. Before getting to the proof that justice *is* good in and of itself, his Socrates embarked on a long search to find out what justice is. His proof is clearly meant to hold for *this*—not for the fake the masses call "justice": this, Plato would himself insist, *is* good only for its consequences.

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COLLECTIVE RESPONSIBILITY *

WHEN we state that a person is responsible for some harm, we sometimes mean to ascribe to him *liability* to certain responsive attitudes, judgments, or actions. Some responsive actions require authority; of these some are punitive, and others force compensation of a harmed victim. In the typical case of individual liability to unfavorable responses from others, three preconditions must be satisfied. First, it must be true that the responsible individual did the harmful thing in question, or at least that his action or omission made a substantial causal contribution to it. Second, the causally contributory conduct must have been in some way *faulty*. Finally, if the harmful outcome was truly "his fault," the requisite causal connection must have been directly between the faulty aspect of his conduct and the outcome. It is not sufficient to have caused harm *and* to have been at fault if the fault was irrelevant to the causing. We can use the expression 'contributory fault' to refer compendiously to these three conditions. Thus, in the standard case of responsibility for harm, there can be no liability without contributory fault.

Certain familiar deviations from the standard case, however, cause confusion and misgiving. What is called "strict liability" in the law is any liability for which the contributory-fault condition is weakened or absent. This is the most general category: vicarious and collective liability are its more interesting subspecies. In the law of torts, persons are put on warning that if they engage in ultra-hazardous activities (starting fires, keeping wild animals, blasting with high explosives) they must be prepared to compensate any innocent

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parties who may incidentally be harmed, no matter how carefully and faultlessly the activities are carried out. The law, of course, permits such activities, but it assigns the risk in advance to those who engage in them. Even criminal penalties may in certain circumstances dispense with the requirement of fault, providing the responsible party had some choice as to whether to take the risk assigned him by the law and some power to diminish the risk by his own care. When liability is imposed without such control, then it can "fall from the sky," like a plague, and land senselessly on random strangers.

There is *vicarious liability* when contributory fault, or some element of it, is properly ascribed to one party, but liability is ascribed to a different party. One unobjectionable type of vicarious liability is that which derives from the process of *authorization* whereby a "principal" authorizes his "agent" to act, within a certain range, for him, and these acts are as binding on the principal as if he had done them himself. Vicarious agency can take two forms, depending on the degree of discretion granted to the agent. There are those who, like delegates, emissaries, and amanuenses, simply transmit the instructions of their principals. "Free agents," on the other hand, are experts hired to exercise their professional judgment on behalf of, and in the name of, the principal. They may be given, within some limited area, independence to act as they deem best, binding the principal to the beneficial or detrimental consequences. This is the role played by trustees, some attorneys, buyers, and ghost writers. A military *hierarchy* is an example of the essential dependency of an institution upon what is in effect a system of unidirectional vicarious liability. Another form of vicarious liability derives from the relation of *suretyship*. A bonding company may insure an employer against the dishonesty of a new employee. If the employee commits embezzlement and makes his escape, the fault (guilt), agency, and causation all belong to the employee, but the liability to make good the losses is the innocent surety's.

Still another form of vicarious liability is the responsibility of employers to compensate victims of the negligence or even, in some cases, the deliberate wrong-doing, of their employees, even when the employee is acting against the orders of his boss and the boss committed no negligence in hiring him in the first place, nor in supervising, instructing, or outfitting him. Here indeed "the sins of the servant are visited upon the master." The rationale of this universal but once highly controverted practice is clear enough. If an accident victim has only an employee to sue, he may end up paying most of

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his medical expenses himself. The employer, having a "deeper pocket," is a more competent compensator; and moreover, since he has *control* over the selection of employees for dangerous work, the rule will make him more careful in his task assignments.

Most of what has passed as *vicarious criminal liability* in human history has been either an expression of such primitive notions as vendetta, noxal surrender, and substitute sacrifice, or else a desperate wartime measure such as punishment of hostages and massive reprisals. Could there be circumstances, in less desperate times, in which authorization, hierarchy, mastership, or suretyship, admittedly plausible bases for noncriminal liabilities, could also be the ground for criminal punishment? Under our present law, a principal will be coresponsible with his agent when the latter commits a criminal act at the former's direction or with his advance knowledge or subsequent ratification. The criminal punishment of superiors for actions done *entirely* on their own by subordinates, however, would be a barbarous regression in normal times. Criminal suretyship is a more difficult matter. I can imagine a voluntary system of suretyship that permits fathers to arrange in advance to undergo punishment instead of their sons in case the son commits a crime. Such a system could have some incidental merits among its preponderant disadvantages: deterrence and development of family solidarity; and it makes more sense than certain cosmic systems of criminal law in which the children answer for the sins of their fathers instead of the other way round.

There is an important point about all vicarious punishment: even when it is reasonable to separate liability from fault, it is only the liability that can be passed from one party to another. In particular, *there can be no such thing as vicarious guilt.* Guilt consists in the intentional transgression of a prohibition, "a violation of a specific taboo, boundary, or legal code, by a definite voluntary act." [1] In addition, the notion of guilt has always been essentially connected with the idea of "owing payment." The guilty party must pay for his sins, and not mere compensation for loss (that idea came much later) but blood money, deodand forfeit, penitential sacrifice, and so on. Theologians have found it easy to speak of vicarious guilt only because the concept of guilt has always had the double sense of actual sin (intentional transgression), on the one hand, and payment, atonement, redemption, etc. on the other; and it is at least logically intelligible for concepts of the latter kind to transfer.

[1] H. M. Lynd, *On Shame and the Search for Identity* (New York: Science Editions, 1961), p. 23.

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Collective liability, as I shall use the term, differs from (other) vicarious liability only in that it involves organized groups and their members. When the whole group is held responsible for the actions of one or some of its members, then from the point of view of any given "responsible" individual, *his* liability in most cases will be vicarious. Under certain circumstances, collective liability is a natural and prudent way of organizing the affairs of an organization, which the members might well be expected to undertake themselves, quite voluntarily. This is true only of those organizations where there is already a high degree of *de facto* solidarity. Collective responsibility not only expresses the solidarity, it also strengthens it, and thus is a good thing to whatever extent the preexistent solidarity was a good thing. A group has solidarity to the degree that its members have mutual interests, bonds of affection, and a "common lot." The mutual interest may be a specific overlap of shared interest, or it may be a community of interest of the sort that exists when each member's integrated set of interests contains the integrated interest set of each of the others. Such "community" is often associated with bonds of sentiment directed toward common objects or with reciprocal affection between the parties. Finally, the parties share a common lot insofar as their goods and harms are necessarily collective and indivisible. Where there is solidarity there is no hurting one member without hurting them all; and because of the way their interests are related, the successes and satisfactions of one radiate their benefits to the others. What makes collective liability natural in such cases as business partnerships, joint authorships, and athletic teams, is that parties who are largely of one mind to begin with are led (or forced) by circumstances to act in concert and share the risk of common failure or the fruits of an indivisible success.

There is perhaps no better index to solidarity than the occurrence of vicarious pride and shame. These attitudes occur most frequently in group members on behalf either of the larger group, or of some other member(s) of the larger group, of which they are a part. Individuals sometimes feel proud or ashamed of their families, ancestors, countries, or races; and all or most members of groups may feel pride or shame over the achievements or failures of single members. Some writers have denied, in effect, that pride (and presumably shame) can ever be authentically vicarious; and there is no doubt that the appearance of vicariousness can often be explained away. Parental pride in the achievements of a son may be the consequence of a belief that those achievements reflect the influence of the parent, so that it is really pride at "what I have created in my

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son." This may be true in some cases, but it obviously cannot explain the son's filial pride in the achievements of his parents or grandparents. In this connection, H. D. Lewis speaks of "the presumption that we ourselves, having been subject to the same influences, are not without a measure of the qualities for which others of our group are noted." [2] This explains many cases of filial pride and shame, but it obviously cannot explain the immigrant's pride in the "American way of life," or the war opponent's feeling ashamed "to wear the same uniform" as those he believes have committed atrocities. Of course, the latter may be something different from shame, namely, mortification at being associated by others with actions of which one disapproves and of which one is totally innocent. Normal embarrassment, like pride at what one has helped others to do or be and pride over one's qualities presumptively shared with conspicuously worthy other persons, is a self-centered attitude; an authentically vicarious feeling, if there can be such a thing, must be based on the doings or qualities of others considered entirely on their own account, unrelated to any doings or qualities of the principal.

H. D. Lewis provides a clue when he speaks of the phenomenon of sympathetic identification—"Our interest in those with whom we have special ties of affection will enable us to follow their success with a glow of satisfaction as if it were our own" (8). If this is what authentically vicarious pride is like, it is a phenomenon of the same order as sympathetic pain or compassion. Indeed, any feeling one person can experience can be experienced vicariously by some other imaginatively sensitive person. What we want, however, is an account not of vicarious or imaginative *sharing* alone, so much as an account that will also apply to vicarious unshared or substitute feeling. Here too, sympathy, I think, is the key. When someone near to me, about whom I care, makes a fool of himself before others, I can feel embarrassed for him, even though he feels no such thing. Yet when some total stranger or some person I despise behaves similarly, my reaction will be indifference or pity or contempt—reactions that are not vicarious. Compare "I am proud (ashamed) because of you" with "I am proud (ashamed) for you." The former is like taking partial credit (blame); the latter is like congratulating or, in the case of shame, condemning from an internal or sympathetic judgment point. We are inclined to congratulate or "condemn fraternally" only when we feel some degree of solidarity with the other parties. The solidarity is a necessary condition of the vicarious emotion, which is in turn an index to the solidarity.

[2] "Collective Responsibility," *Philosophy*, XXIII, 84 (January 1948): 7.

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I think this account helps explain some puzzling variations. It is natural, for example, that an American Negro should feel solidarity with all other Negroes and speak of what has been done to "the black man" by "the white man" and what the moral relations between "the" black man (all black men) and "the" white man (all white men) ought to be. But I, for one, am quite incapable of feeling the same kind of solidarity with all white men, a motley group of one billion persons who are in my mind no more an "organization" than is the entire human race as such. I certainly feel no bonds to seventeenth-century slave traders analogous to those ties of identification an American Negro must naturally feel with the captured slaves. Precisely because of this failure of imagination, I can feel no shame on *their* behalf. Similarly, a European, appalled by American foreign policy, will feel anger or despair, but not vicarious shame unless he has some sentimental attachment to the United States. An American with similar views will be ashamed of his country. Indeed, one cannot be intensely ashamed of one's country unless one also loves it.

Collective-responsibility arrangements are most likely to offend our modern sensibilities when the liabilities are to criminal punishment. Yet there was a time when primitive conditions required that the policing function be imposed on local groups themselves through a system of *compulsory universal suretyship*. Among the early Anglo-Saxons, the perfectly trustworthy man was he who did not stray from the village where his many kin resided, for they were his sureties who could guarantee his good conduct. In contrast, the stranger far from his kindred had nothing to restrain him, and since his death would excite no blood feud, he had no legal protection against the assaults of others.[3] With the development of Christian feudalism, the ancient system of kindred liability broke down, for churchmen without kin or local tie began to appear among suspicious villagers, and "as time went on, many men who for one reason or another moved away from their original environments and sought their fortunes elsewhere . . . could not depend on ties of kindred to make them law-worthy and reputable." [4] Hence, a new system of compulsory suretyship was developed based on neighborhood rather than kin. Now everyone was *made* "law-worthy and reputable" by being assigned to a neighborhood group every member of which was an insurer of his conduct. If an offender was not produced by his surety group to answer criminal charges, a fine was

[3] L. T. Hobhouse, *Morals in Evolution* (London: Chapman & Hall, 1951), p. 81.
[4] S. B. Chrimes, *English Constitutional History* (London: Oxford, 1953), p. 77.

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levied on each member of the group and sometimes liability to make compensation as well.

Now, this may strike us as a barbarous expedient of a primitive people who had no conception of individual justice; but I think that is too severe a judgment. The frankpledge system was a genuine system of criminal law: there was nothing arbitrary, *ad hoc,* or *ex post facto* about it. It was also a system of compulsory group self-policing in an age when professional police were impossible. Moreover, it reinforced a preexisting group solidarity the like of which cannot occur in an age of rapid movement like our own. Most importantly, the system worked; it prevented violence and became generally accepted as part of the expected natural order of things.

Yet surely there is no going back to this kind of collective responsibility. Gomperz concluded his essay by claiming: "that men can be held responsible solely for individual conduct freely willed is certainly wrong; it mistakes a principle characteristic of individualistic ages for an eternal law of human nature." [5] I agree that the principle of individual responsibility is not an "eternal law"; but Gomperz misleadingly suggests a kind of historical relativism according to which individualistic and collectivistic ages alternate like styles in ladies' skirts. On the contrary, the changes that have come with modern times have dictated quite inevitably that the one principle replace the other, and no "alternation" is remotely foreseeable, unless massive destruction forces the human race to start all over again in tiny isolated farming settlements. Under modern conditions, the surety system would not work in the intended way, for the surety groups, being subject to rapid turnover, would lack the necessary cohesion and solidarity to exert much influence or control over their members. It is more difficult now to keep a watchful eye on our neighbors since we no longer spend the better part of every day working in adjacent fields with them. Moreover, we no longer impose a duty on all citizens to raise the hue and cry upon discovery of a crime, drop their work, arm themselves, and join the hunt, on pain of penalty to their whole surety group. Now, we say that detection and pursuit of criminals is the policeman's job. He gets paid for it, not us; and he is much more able to do it well. Besides, we all have other things to do.

But we have paid a price in privacy, which will get steadily stiffer, for the principle of individual criminal responsibility. The technical devices that make modern police work possible are reaching the

[5] H. Gomperz, "Individual, Collective, and Social Responsibility," *Ethics,* LXIX, 3 (April 1939): 342.

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point where they will make inspection of every person's life and history possible only minutes after a police official desires it. In olden times a man could not wonder for long whether he was his neighbor's keeper, for the voice of authority would instruct him unmistakeably that he'd damn well better be. Today we prefer not to get involved in the control of crime, with the result that those who are charged with the control of crime get more and more involved with us.

In summary, collective criminal liability imposed on groups as a mandatory self-policing device is reasonable only when there is a very high degree of antecedent group solidarity and where efficient professional policing is unfeasible. Furthermore, justice requires that the system be part of the expected background of the group's way of life and that those held vicariously liable have some reasonable degree of *control* over those for whom they are made sureties. It is because these conditions are hardly ever satisfied in modern life, and not because individual liability is an eternal law of reason, that collective criminal responsibility is no longer an acceptable form of social organization.

So much for collective responsibility as a form of *liability without fault*. People often have other models in mind, however, when they speak of "collective responsibility."

1. *Liability with noncontributory fault*. Various faults can exist in the absence of any causal linkage to harm, where that absence is only a lucky accident reflecting no credit on the person who is at fault. Where every member of a group shares the same fault, but only one member's fault leads to any harm, and that not because it was more of a fault than that of the others, but only because of independent fortuities, many outsiders will be inclined to ascribe collective liability to the whole group. Other outsiders may deny the propriety of holding even a faulty or guilty person liable for harm that was not "his fault"; but for a group member himself to take this public stand would be an unattractive piece of self-righteousness. It would be more appropriate for him to grieve, and voluntarily make what amends he can, than stubbornly to insist on the noncontributory character of his fault, which was a matter of pure lucky chance.

In this kind of situation we have a handy model for the interpretation of extravagant hyperboles about universal responsibility. One man drinks heavily at a party and then drives home at normal (high) speeds, injuring a pedestrian along the way. The claim that we are

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all guilty of this crime, interpreted in a certain way, is only a small exaggeration, for it is a very common practice, in which perhaps *most* of us participate, to drive above posted speed limits at night and also to drive in our usual fashion to and from parties at which we drink. Most of us are "guilty" of this practice, although only the motorist actually involved in the accident is guilty of the resultant injury. He is guilty *of* or *for* more than we are, and more harm is his fault; but it does not necessarily follow that he is more guilty or more at fault than the rest of us.

Now, there are some character faults that are present to some, though not the same, degree in almost everyone. These flaws sometimes cause enormous amounts of harm. There is some point in saying that all those who share the flaws, even those who have had no opportunity to do mischief by them, are "responsible" when harm results, in the sense that they are morally no better than those whose fault contributed to the harm and are, therefore, properly answerable for the way they are, if only to their own consciences. There is even a point in the exaggeration that ascribes the common fault to everyone without exception, when in fact there are exceptions; for this may serve to indicate that serious and dangerous faults are far more common than is generally believed, and may exist in the least suspected places. Since character flaws are dispositions to act or feel in improper ways in circumstances of various kinds, we may never know of a given man that he has the fault in question until circumstances of the appropriate kind arise; and they may never arise.

Can liability of the noncontributorily faulty be morally palatable? Criminal punishment of whole groups of fault-sharers would for a dozen reasons be impracticable. We have no way of confirming statements about what a man with a given character structure would do if the circumstances were different; so if we are determined to avoid punishing the genuinely faultless, we had better wait until the circumstances *are* different. In any case, the larger and more diverse the group of alleged fault-sharers, the less likely it is that they all share—or share to anything like the same degree—the fault in question. If nevertheless, the fault is properly ascribed distributively to a group of great size, the probability increases that the fault is common also to judge, jury, and prosecutor. Moral uncertainties of this kind are not likely to be present when we have evidence linking the fault of an individual to some harmful upshot. Those luckier ones who share the fault but escape the causal link to harm must from the point of view of criminal justice simply be left to profit from

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their luck. But when we leave political-legal contexts, the case for causation as a necessary condition of liability weakens considerably. The law will neither punish *B* nor force him to compensate *C* for the harm caused by *A*'s fault, when *B* is as prone as *A* to the fault in question; but that is no reason why private individuals should refrain from censuring or snubbing *B* to the same extent as *A*, or why *A* should not hold himself to account.

2. *Contributory group-fault: collective and distributive.* Sometimes we attribute liability to a whole group because of the contributory fault of each and every member. Group responsibility, so conceived, is simply the sum of all the individual responsibility. Since each individual is coresponsible for the harm in question, no one's responsibility is vicarious. Nevertheless, problems are raised by three kinds of situation: first, those occasions where large numbers of people are independently at fault without any concert or communication between them; second, those occasions where the harm is caused by a joint undertaking of numerous persons acting cooperatively; third, where the harm is to be ascribed to some feature of the common culture consciously endorsed and participated in by every member of the group.

Suppose a man swimming off a public beach that lacks a professional life-saver shouts for help in a voice audible to a group of one thousand accomplished swimmers lolling on the beach; and yet no one moves to help him, and he is left to drown. The traditional common law imposes no liability, criminal or civil, for the harm in this kind of case. Among the reasons often given are that, if liability were imposed on one, it would, in all consistency, have to be imposed on the whole vast group; that if a duty to rescue drowning swimmers were imposed on every accomplished swimmer in a position to help, the results would be confusing and chaotic, with hoards of rescuers getting in each other's way and no one quite sure he is not violating the law by not entering the struggle quickly and ardently enough. On the other hand, so the argument goes, if each feels a duty to mitigate the dangerous confusion, there could be an Alfonse-Gaston exchange of courteous omissions on a large and tragic scale. This rationale has always seemed disingenuous to me. I see no reason why legal duties should not correspond here with moral ones: each has a duty to attempt rescue so long as no more than a few others have already begun their efforts. In short, everyone should use his eyes and his common sense and cooperate as best he can. If no one makes any motion at all, it follows that no one has done his best within the limits imposed by the situation, and *all*

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are subject at least to blame. Since all could have rescued the swimmer, it is true of each of them that but for *his* failure to attempt rescue in the circumstances that in fact obtained, the harm would not have occurred. It may be awkward to charge all one thousand persons with criminal responsibility, but the difficulties would be no greater than those involved in prosecuting a conspiracy of equal size. As for civil liability, the problems are even less impressive: the plaintiff (widow) should simply be allowed to choose her own defendants from among the multitudes who were at fault, those, no doubt, with the "deepest pockets."

The second kind of case exemplifying group fault distributable to each member is that where the members are all privy to a crime or tort as conspirators or accomplices or joint tortfeasors. In complicated crimes, *complicity* is ascribed unavoidably to persons whose degree of participation in the crime is unequal. The common law, therefore, divides guilty felons into four categories: "perpetrators," "abettors," "inciters" (all three of these are "accomplices"), and "criminal protectors," so that one may be guilty of a given crime either as its principal perpetrator (and even perpetration is a matter of degree, abettors counting as "principals in the second degree") or as accessories, that is, inciters or protectors. Thus, one can be guilty, as an accessory, even of crimes that one is not competent to perpetrate. A woman, for example, may be found guilty of rape, as an abettor or inciter to the man, who must, of course, be the principal perpetrator of the crime on some other woman.

Suppose *C* and *D* plan a bank robbery, present their plan to a respected friend *A*, receive his encouragement, borrow weapons from *B* for the purpose, hire *E* as getaway driver, and then execute the plan. Pursued by the police, they are forced to leave their escape route and take refuge at the farm of *E*'s kindly uncle *F*. *F* congratulates them, entertains them hospitably, and sends them on their way with his blessing. *F*'s neighbor *G* learns of all this, disapproves, but does nothing. Another neighbor, *H*, learns of it, but is bribed into silence. On these facts, *A*, *B*, *C*, *D*, *E*, and *F* are all guilty of the bank robbery, *C* and *D* as perpetrators, *A* and *B* as inciters,[6] *E* as an abettor, *F* as a protector. *G* is guilty of the misdemeanor called "misprision of felony," and *H* of the misdemeanor called "compounding a felony." On the other hand, if *J*, and old acquaintance of *C* and

[6] "An inciter . . . is one who, with *mens rea,* aids, counsels, commands, procures, or encourages another to commit a crime, or with *mens rea,* supplies him with the weapons, tools, or information needed for his criminal purpose."—R. M. Perkins, *Criminal Law* (Brooklyn: Foundation Press, 1957), p. 558.

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D, sees them about to enter the bank, notices suspicious bulges in their pockets, surmises that they are up to no good, yet does nothing out of simple reluctance to "get involved," he is not legally guilty. Yet he is certainly subject to blame; and, as moralists, we might decide this marginal case differently from the lawyers, and brand him a kind of "moral accessory" before the fact, "morally guilty," though to a lesser degree than the others. We can afford to have stricter standards of culpability than the lawyers since no formal punishment will follow as a result of *our* verdicts, and we don't have to worry about procedural complexities.

Part of the problem of determining degrees of responsibility of individuals in joint undertakings, where the responsibility is not vicarious, is that of assessing the extent of each individual's *contribution* to the undertaking. This involves assessment of various incommensurable dimensions of contribution—degrees of initiative, difficulty or causal crucialness of assigned subtasks, degrees of authority, percentage of derived profit, and so on. Although these matters cannot be settled in any mathematical way, rough and ready answers suggest themselves to common sense, and the legal categories of complicity have proved quite workable. The more difficult problems require estimates of *voluntariness*. Do I carry my own share of "moral guilt" for the Vietnamese abomination as a consequence of my payment of war taxes? Is my position morally analogous to *B*, the "inciter" in the bank robbery example? In avoiding protest demonstrations, am I guilty of "cooperating" with evil, perhaps on the model of *J*, *F*, *G*, or *H*? The answers to those questions are difficult, I think, not because the (minute) extent of my causal contribution is not easily measurable, but because it is difficult to know how strict should be the standards of voluntariness for cases like this. Since nonpayment of taxes is a crime, the payment of war taxes is less than fully voluntary. To go to prison merely to avoid being associated however indirectly with some evil, is to adopt the heroic path. The man who "cooperates" with crime under duress is surely in a different position from the man who cooperates, like *H*, as a result of a bribe or, like *J*, out of sloth or cowardice. Yet, whether the threat of legal punishment is sufficient duress to excuse "cooperation" with authorities again depends on numerous factors, including the degree of the evil and the probabilities of its alleviation with and without the contemplated resistance. In any case, mere nonresistance does not count as "cooperation," unless various other conditions are fulfilled. Where those conditions are conspicuously unfulfilled, as in Nazi Germany, then nonresistance is

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entirely involuntary, since its only alternative is pointless self-sacrifice.

The third interesting case of distributive group-fault is that which adheres to a group's folkways, yet somehow reflects upon every member of the group. Even Dwight Macdonald concedes that there are "folk activities" that a group "takes spontaneously and as a whole . . . which are approved by the popular mores" and which are not merely "things done by sharply differentiated sub-groups." [7] Nazi acts of violence against Jews, Macdonald argued, were not genuine folk activities in this sense. In contrast, the constant and widespread acts of violence

> . . . against Negroes throughout the South, culminating in lynchings may be considered real "people's actions," for which the Southern whites bear collective responsibility . . . the brutality . . . is participated in, actively or with passive sympathy, by the entire white community [written in 1945] (*loc. cit.*).

The post-bellum Southern social system, now beginning to crumble, was contrived outside of political institutions, and only winked at by the law. Its brutalities were "instrumentalities for keeping the Negro in his place and maintaining the supraordinate position of the white caste." [8] Does it follow from this, however, that "Southern whites [*all* Southern whites] bear collective responsibility"? I assume that 99% of them, having been shaped by the prevailing mores, whole-heartedly approved of them; but what of the remaining tiny fraction? If they are to be held responsible, they must be so vicariously, on the ground of their strong (and hardly avoidable) solidarity with the majority. But suppose a few hated their Southern tradition, despised their neighbors, and did not think of themselves as Southerners at all? Then perhaps Macdonald's point can be saved by excluding these totally alienated souls altogether from the white Southern community to which Macdonald ascribes collective responsibility. But total alienation is not likely to be widely found in a community that leaves its exit doors open; and in a community with as powerful social enforcement of mores as the traditional Southern one, the alienated resident would be in no happier position than the Negro. Collective responsibility, therefore, might be ascribed to all those whites who were not outcasts, taking respectability and material comfort as evidence that a given person did not qualify for the exemption.

[7] *Memoirs of a Revolutionist* (New York: Meridian, 1958), p. 45.

[8] John Dollard, *Caste and Class in a Southern Town,* as quoted by Macdonald, *op. cit.,* 45.

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3. *Contributory group fault: collective but not distributive.* There are some harms that are ascribable to group faults but not to the fault of every, or even *any,* individual member. Consider the case of the Jesse James train robbery. One armed man holds up an entire car full of passengers. If the passengers had risen up as one man and rushed at the robber, one or two of them, perhaps, would have been shot; but collectively they would have overwhelmed him, disarmed him, and saved their property. Yet they all meekly submitted. How responsible were they for their own losses? Not very. In a situation like this only *heroes* could be expected to lead the self-sacrificial charge, so no individual in the group was at fault for not resisting. The whole group, however, had it within its power to resist successfully. Shall we say then that the group was collectively but not distributively at fault? Can the responsibility of a group be more than the sum of the responsibility of its members? There is surely a point in affirming so. There was, after all, a flaw in the way the group of passengers was organized (or unorganized) that made the robbery possible. And the train-robbery situation is a model for a thousand crises in the history of our corporate lives. No individual person can be blamed for not being a hero or a saint (what a strange "fault" that would be!); but a whole people can be blamed for not producing a hero when the times require it, especially when the failure can be charged to some discernible element in the group's "way of life" that militates against heroism.

One would think that where group-fault is nondistributive, group-liability must be so too, else it fall vicariously on individual members who are faultless. But for all overt unfavorable responses, group-liability is inevitably distributive: what harms the group as a whole necessarily harms it members. Hence, if the conditions of justifiable collective liability—group solidarity, prior notice, opportunity for control, etc.—are not satisfied, group liability in these cases would seem unjustified.

An exception, however, is suggested by the case where an institutional group persists through changes of membership, and faultless members must answer for harms caused, or commitments made, by an earlier generation of members. Commitments made in the name of an organized group to an individual may persist even after the composition of the group and its "will" changes. When, nevertheless, the group reneges on a promise, the fault may be that of no individual member, yet the liability for breach of contract, falling on the group as a whole, will distribute burdens quite unavoidably on faultless members. Consider the philosophy department which de-

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bated whether to pass a graduate student on his preliminary examinations. The main argument against doing so was that a pass would commit the department to the supervision of the student's dissertation, and no one who knew this particular student was willing to read his thesis. The affirmative carried when two members volunteered to direct the dissertation themselves. One year later, however, one of these sponsors had died and the other had taken employment elsewhere. Thus, *no member* was willing to supervise this student, and the department as a whole had to renege on its promise. No member felt personally bound by the promises of his departed colleagues, which had been made to the student in no one's name but the department's. No legal action, of course, was possible; but if the department had been *forced* to honor its word, this would have been an excellent example of nondistributive group fault (the departmental reneging) and consequent group liability of a necessarily distributive kind.

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KANT AND KIERKEGAARD ON DUTY AND INCLINATION *

DISCUSSIONS of Kierkegaard's ethical views have tended to focus on the highly dramatic "teleological suspension of the ethical" in *Fear and Trembling* to the neglect of his sustained discussion of the ethical life in *Either/Or* and other of his writings. In *Fear and Trembling* Kierkegaard makes the trenchant point that the ethical justification of action presupposes the validity of the ethical as such and, hence, can provide only a qualified and limited warrant. Essentially this same point has been made by a number of moralists who would not be caught with a book of Kierkegaard in their hands. But it is the other side of this point which Kierkegaard chose to emphasize, namely that, insofar as a person is ever called upon to act as an individual, he stands outside the ethical sphere and, thus, can find no ethical justification for his action. If ethical justification is equated with rational justification, then the action of the individual qua individual must presumably go without any justification whatever. It is this equation, suggested if not explicitly espoused by Kierkegaard, that has aroused the ire of rational moralists. Or, perhaps I should say of the defenders of ra-

* To be presented in an APA symposium on Kierkegaard, December 29, 1968. Commentators will be William Barrett and Wilfrid Desan.

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